

		Defendant’s boilerplate objections to these three RFAs are without merit. The information sought is not a legal conclusion or an expert opinion. It is a fact: either Defendant has been in a car accident before (or found at fault for a car accident or gotten a ticket) or he has not. “Assumes facts not in evidence” is not an objection to discovery.. Nor is “unduly prejudicial,” the argument made in Defendant’s opposition. Defendant argues the information is not relevant because Plaintiff has not prayed for punitive damages or “asserted a negligent entrustment or hiring claim against the District that would make Stone’s prior driving record relevant.” But Plaintiff may use discovery to learn the facts necessary to allege a basis for punitive damages. “Codified as subdivision (b) of section 1101 (§ 1101(b)), the rule has long been that evidence of uncharged misconduct <i>is</i> admissible where relevant to prove “some fact (such as motive, opportunity, intent, preparation, plan, <i>knowledge</i>, identity, absence of mistake or accident ...) other than [a defendant's] disposition to commit such an act.” (§ 1101(b), <i>italics added.</i>)” <i>People v. Ortiz</i> (2003) 109 Cal.App.4th 104, 111. And Plaintiff <i>has</i> pleaded negligent entrustment, which would make Defendant’s driving record, and NMSD’s knowledge of it (or lack thereof) relevant. The motion to compel further responses to these RFAs is therefore granted. Plaintiff to give notice.
8	Pooph, Inc. vs. ONM Environmental, Inc. 2025-01511009	1. Motion for Order to Stay Proceedings 2. Case Management Conference Continued to 06/01/2026
9	Popal vs. Sajjadian 2024-01384261	Motion to Set Aside/Vacate Judgment The Court grants Plaintiff Shahla Popal’s Motion to vacate the 1/23/26 Judgment and 12/23/25 summary judgment Order on Plaintiff’s Complaint against Defendants Ali Sajjadian, M.D., and Sajjadian Medical Corporation.

The Court re-sets the hearing for summary judgment to take place on 8-3-26 at 1:30 p.m. The Court will consider the 12/16/25 corrected declaration of Andre Aboolian, M.D., F.A.C.S. No further filings are permitted by either side.

The Court also sets a trial setting conference for the same date and time.

Merits

A [CCP § 473\(b\)](#) consists of “a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” ([Minick v. City of Petaluma \(2016\) 3 Cal.App.5th 15, 25-26](#); [Bailey v. Citibank, N.A. \(2021\) 66 Cal.App.5th 335, 348.](#))

Here, the Court finds sufficient facts have been shown to warrant the relief requested based on these circumstances analogous to a default. The Court granted summary judgment on the grounds that Defendants met their moving burden and Plaintiff did not present expert evidence to controvert Defendants’ expert testimony. (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607 [*citing Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984-985].) The Court did not consider Plaintiff’s expert declaration at all.

A recent Court of Appeal case confirms that it is an abuse of discretion to refuse to consider an opposing declaration inadvertently filed without verification, when the defect has been cured prior to entry of the order. (*Walton v. Victor Valley Community College District* (2026) 119 Cal.App.5th 1164, “

A court should be cautious about granting summary judgment “based on a curable procedural default, which deprives the opposing party of a decision on the merits.” (Citation omitted.) In the event of such a defect, the “proper response” is to grant an opportunity to cure so the motion can be resolved on the merits. (Citation omitted).)

Here, at the hearing, the Court pointed out the defect and took the matter under submission. The next morning after the hearing Plaintiff filed the corrected declaration, but the Order on the Motion was entered without consideration of the corrected declaration.

Thus, Plaintiff should have been given an opportunity to cure such a defect so the matter may be resolved on the merits. The court, instead, relied on its duty to consider only admissible evidence. *Walton* makes clear that the Plaintiff had a right to “cure the defect”.

Defendants did not raise this objection themselves. The defect was identified sua sponte by the Court, at the hearing.

		Finally, the Court finds no prejudice to Defendants. The Motion is granted. Plaintiff to give notice.
10	Sunnyside Cremation and Funeral Inc. vs. California Mortuary Group, Inc. 2020-01169105	Motion for Summary Judgment and/or Adjudication The Court grants in part Defendants California Mortuary Group, Inc., and Yung M. Jung’s Motion for summary adjudication of Plaintiff Sunnyside Cremation and Funeral Inc.’s First Amended Complaint (FAC). Specifically, the Court grants summary adjudication as to the second cause of action for intentional interference with contracts, which are issues 4 and 5 (identified in the Notice of Motion as numbers 7 and 8). The remainder of the Motion is denied. <u>Late Opposition</u> Plaintiff filed its opposition with 18 days’ notice. All opposition papers must be served on the moving party and filed with the court at least 20 days before the date set for hearing on the motion, unless the court shortens the time for good cause shown. (CCP § 437c(b)(2) (amended eff. 1/1/25)) A court has discretion to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission. (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765,—court had discretion to refuse to consider “surrebuttal” brief and supplemental expert declaration filed on day of hearing without any explanation for late submission; <i>Mackey v. Board of Trustees of Calif. State Univ.</i> (2019) 31 Cal.App.5th 640, 657—“inadvertently” late filed declarations properly excluded where party did not seek order permitting late filing nor continuance of hearing.) Here, Plaintiff’s Counsel tells us that he mis-calendared the date for the filing of the opposition. (Buus Decl., ¶2.) A substantive reply was filed with no request for a continuance. Thus, the Court, in its discretion, considers the opposition. <u>Requests for Judicial Notice</u> Defendants’ request for judicial notice is granted. The court may take notice of official acts of any state, county or federal legislative, executive or judicial department. (Ev. Code § 452(c); <i>see Fowler v. Howell</i> (1996) 42 Cal.App.4th 1746, 1750—court can take judicial